

[doc. web n. 9917883]

Provision of June 8, 2023

Register of Provisions

n. 242 of June 8, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia, Attorney Guido Scorza, members, and

Counsel Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing

"Code regarding the protection of personal data,

containing provisions for the adaptation

of the national legal system to Regulation (EU)

2016/679 of the European Parliament and of the Council, of

April 27, 2016, concerning the protection of

natural persons with regard to the processing of personal data,

as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter

"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning

internal procedures with external relevance,

aimed at carrying out the tasks and

exercising the powers entrusted to the Guarantor for the

protection of personal data, approved by

resolution No. 98 of April 4, 2019, published in

G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web

n. 9107633 (hereinafter "Guarantor Regulation No.

1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary

General pursuant to Article 15 of the Guarantor Regulation

No. 1/2000 on the organization and functioning of the

office of the Guarantor for the protection of personal data, on www.gpdp.it, doc.

web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

WHEREAS

1. The complaint

By note dated March 31, 2022, Dr. XX submitted

a complaint, accompanied by photographic documentation, regarding the dissemination, by

the Health Protection Agency of Sardinia, of her health conditions,

by posting, at the entrance gate of

the XX clinic, where she works as a doctor XX, a sign stating: "Users are

advised that (....)(on date XYZ) the XX session will not be

guaranteed due to service needs (illness of Dr. XX)".

2. The investigative activity

Following a request for information from this

Office (note dated April 5, 2022, reiterated on June 13, 2022), in which

the Health Protection Agency (ATS) Sardinia-Local Health Authority of Nuoro-XX was asked to provide any information useful for evaluating the case, particularly regarding the legal basis that would have allowed the aforementioned dissemination of health data, the aforementioned Agency responded with a note dated June 24, 2022.

In particular, concerning the fact subject to the complaint, the Director of XX forwarded a communication from the Medical Director XX in which it was stated that:

- the same Director "requested, on March 22, 2022, the Health Assistant (...) to post at the entrance of the XX clinic a notice indicating to users the closure of the clinic, following the sudden absence of Dr. XX,

the responsible doctor of the said clinic";

- "due to a mere error, it was written illness instead of absence, but immediately, as soon as the undersigned realized the error, she ordered that the Health Assistant (...) immediately replace the notice with the wording "clinic closure for service needs".

With reference to what emerged from the examination of the documentation reviewed and the statements made,

considering that the described conduct was not

compliant with the relevant regulations on

the protection of personal data, the Office

notified ATS Sardinia, pursuant to Article

166, paragraph 5, of the Code, of the initiation of the procedure

for the adoption of the measures referred to in Article 58,

paragraph 2, of the Regulation, inviting it to submit to

the Guarantor defensive writings or documents or

to request to be heard by the Authority (Article 166,

paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, Law No. 689 of November 24, 1981). In particular, by

act No. 0035778 of July 4, 2022, the Authority

considered that the Agency had carried out a

processing of health data in violation of the

basic principles of processing referred to in Articles 5

and 9 of the Regulation as well as Article 2-septies, paragraph

8, of the Code.

Considering the modification of the institutional framework

of the regional health service of Sardinia,

carried out with L.R. No. 24 of September 11, 2020,

the same note of July 4, 2022, prot. No. 0035778, was

transmitted to the local health authority of

Oristano (note of October 12, 2022, prot. No.

0055435).

By note dated November 11, 2022, the local health

authority No. 5 of Oristano stated that:

- "regarding the reported facts, this Agency believes it has no responsibility for the reasons explicitly stated below:

- the contested fact occurred at the XX clinic located in the Municipality of XX, not territorially affiliated with this ASL as the events took place in the territory of competence of the ASL of Nuoro;
- The activity carried out by the XX Service at the aforementioned ASL 3 is conducted by the

employees of the Service belonging to the same ASL;

- Dr. XX, although an employee of this ASL, in her capacity as Director of the XX Service, operates transversally across the three ASLs of Nuoro, Lanusei, and Oristano in the management of the Service's activities;
- this organization of departmental functions, a legacy of the ceased ATS, remains in place pending the adoption of new corporate acts in order to ensure continuity in the operation of services;
- in the new corporate acts, which will redesign the organization of the new ASLs, the function of XX, as well as other functions that were organized by macro-areas in ATS, will be provided as a specific function of each individual Company;
- "for the reasons stated above, the use of the letterhead of ASL n. 5 of Oristano in the formulation of the response by Dr. XX to this Authority is also erroneous and misleading."

Therefore, in transmitting the aforementioned note of July 4, 2022, prot. n. 0035778, the local social-health company n. 3 of Nuoro was notified of the violation of the basic principles of processing referred to in Articles 5 and 9 of the Regulation, as well as Article 2-septies, paragraph 8, of the Code, communicating, pursuant to Article 166, paragraph 5 of the Code, the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation (note of January 15, 2023, prot. n. 0006416).

In a note dated February 10, 2023, the local social-health company n. 3 of Nuoro, hereinafter referred to as "Company," represented that:

- "in a completely correct and coherent manner, the Local Social-Health Company n. 5 asserts that the XX, within which the XX Service is present (...), operates transversally across the territory of three Local Social-Health Companies: n. 3 of Nuoro, n. 4 of Ogliastra, and n. 5 of Oristano in the management of the Service's activities";
- "this structuring of the Department comes from the previous governance and management structure of regional health, namely the Health Protection Company of Sardinia (ATS Sardinia), a single entity divided into territorial Areas whose competencies, as a result of Law n. 24/2020 reforming the Regional Health System, have been assumed since January 1, 2022, by the newly established governing and management bodies of health, namely the 8 Social Health Companies";
- "in confirmation of what was asserted by ASL n. 5 of Oristano, the activity of XX and, therefore, of the XX Service was and is still being carried out in the manner described above (i.e., jointly and transversally across the territories of the three Local Social Health Companies) pending the approval by the Regional Council of Sardinia of the corporate acts by virtue of which the function of XX would be individually attributed to each ASL and conducted by each as an autonomous Holder";
- "the aforementioned Department, while using the personnel of the involved ASLs, nevertheless performs functions autonomously from those of the same ASLs, to the extent that it is believed that, given the peculiar nature of the activities and services characterizing the Department as well as the autonomy and independence with which they are carried out and the related decisions are made, it can be configured as an autonomous data controller. There is no doubt that the personnel who caused the contested violation belongs to ASL n. 3 of Nuoro, but it could also be considered logical and reasonable to believe that, following the guiding principles of Regulation (EU) 2016/679, where there is decision-making autonomy capable of ensuring the possibility of determining the purposes and methods of data processing (or even one of them), one could consider the presence of autonomous ownership or, at the very least, co-ownership of XX, identifying and distinguishing the figure of the Controller not based on the formal belonging of the personnel to ASL n. 3 but rather based on the activity actually carried out by the Department, regardless of any formal qualification";
- "the attribution of roles and responsibilities in the personal data processing system introduced by Regulation (EU) 2016/679, as is well known and acknowledged, cannot be based on the simple formal element represented by the content of an abstract definition but must, instead, derive from the concreteness of an activity or function performed in order to precisely identify roles and responsibilities, as could be configured regarding XX;
- regarding the merits of the matter, it was "an accidental event based on a fundamental misunderstanding between those who gave the order to inform users of the impossibility of performing the service they were waiting to receive and those who actually executed that notification (...);"

- “the violation itself, although it did indeed involve the release of information about the health status of the complaining individual, in an absolutely generic manner without disclosing specific pathologies, is attributable to a very limited impact on the rights and freedoms of individuals, in addition to being confined to a single interested party. The reactive conduct of the Administration cannot be overlooked: as soon as it became aware of the error, the responsible party immediately proceeded to eliminate and replace the notice, thus intervening effectively to avoid harm to the interested party and thereby limit the negative repercussions.”

With the aforementioned note of February 10, 2023, the Company also requested to be heard in a hearing. However, no communication has been received.

In relation to the same by the deadline indicated, the Authority, with a note dated May 5, 2023 (prot. no. 0072446), noted the de facto waiver of the hearing requested by the Company. Within the same communication, recalling the concepts of data controller and joint controller (art. 4, par. 1, point 7 and art. 26 of the Regulation and “Guidelines 07/2020 on the concepts of data controller and data processor under the GDPR,” adopted by the EDPB on July 7, 2021, par. 2.1.1, point 18 and par. 3), clarifications were requested regarding the statements provided, particularly with reference to the joint controller agreement possibly signed, pursuant to art. 26 of the Regulation, by the Company and XX.

In a note dated May 10, 2023, the Company responded, stating that:

- “what is merely a hypothesis of discussion within a defensive memorandum in which the arguments could also refer to mere hypotheses or abstractions solely for the purpose of providing a point of reflection to better relate the events within a general framework of fact and law or to exclude them from it, and therefore, not an assertion of an existing reality and not a false declaration or certification of news or circumstances, but merely a hypothesis of factual qualification of XX as an independent Controller or, at least, as a Joint Controller hypothetically and exclusively drawing from the activities actually carried out by the Department itself, without any pre-established or predetermined elements in this sense”;

- “it is highlighted that the intention of this Company was solely and exclusively to propose a residual hypothesis of comparison and not to assert existing circumstances (...) to be evaluated if necessary, in mere subordination and exclusively with regard to the functions actually performed by the Department concerning the responsibility of the Company itself certified by the dependence of the personnel causing the event”;

- “it should finally be specified how the aforementioned statements have completely lost their relevance as the approval of the corporate act of ASL No. 3 of Nuoro by the Regional Council of the Autonomous Region of Sardinia with DGR No. 4/63 of February 16, 2023, has definitively attributed to the Company 'pro quota' the functions of XX of which it is the sole Controller, for which reason it cannot be disregarded the connection of responsibilities related and consequential to such qualification.”

**The Company finally reiterated the circumstances under which the harmful event occurred:

“(absolute temporal limitation of the event, generic indication of the health condition without specification of any pathology, existence of personal conflict between the parties involved, origin of the event in a mere misunderstanding between the one who gave the order and the one who executed it and, therefore, the absolute absence of voluntariness of the act, immediate removal of the notice and thus timely containment of the effects of the event and consequently lack of prejudice to the rights and freedoms of the interested parties).”**

3. Outcome of the Investigative Activity

Taking note of what was represented by the company and in the absence of defensive memoranda, it is observed that:

1. “health-related data” is considered “personal data concerning the physical or mental health of a natural person, including the provision of health care services, which reveal information related to their state of health” (art. 4, par. 1, n. 15, of the Regulation);
2. dissemination is understood as “making personal data known to indeterminate subjects, in any form, including by making them available or consulting” (art. 2-ter, comma 4, lett. b) of the Code);
3. personal data must be “processed lawfully, fairly, and transparently concerning the data subject

('lawfulness, fairness, and transparency')," must be "adequate, relevant, and limited to what is necessary for the purposes for which they are processed ('data minimization') and "processed in a manner that ensures adequate security (...) including protection, through appropriate technical and organizational measures, against unauthorized or unlawful processing or against accidental loss, destruction, or damage ('integrity and confidentiality')" (art. 5, par. 1, lett. a), c) and f) of the Regulation);

4. the dissemination of health data is expressly prohibited (art. 2-septies, comma 8 and art. 166, comma 2, of the Code);

5. in the health sector, information about the state of health can only be communicated to the data subject; it can also be communicated to third parties only on the basis of an appropriate legal basis or at the request of the data subject itself, prior written delegation from the latter (art. 9 of the Regulation and art. 84 of the Code, in conjunction with art. 22, comma 11, Legislative Decree August 10, 2018, n. 101).

****4. Conclusions****

****In light of the evaluations mentioned above, taking into account the statements made by the Company during the investigation and considering that, unless the fact constitutes a more serious crime, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under art. 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor" - the elements provided by the data controller in the above-mentioned defensive memoranda do not allow to overcome the observations notified by the Office with the initiation act.**** of the procedure of July 4, 2022, transmitted to the local health authority no. 3 of Nuoro on January 15, 2023, as none of the cases provided for by Article 11 of the Regulation of the Guarantor no. 1/2019 apply.

In particular, the arguments put forth by the Authority are not sufficient to accept the request for dismissal. For these reasons, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Authority is noted, for having disclosed data related to the health of Dr. XX in violation of the basic principles set forth in Articles 5, paragraph 1, letters a), c), f) and 9 of the Regulation, as well as Article 2-septies, paragraph 8, of the Code.

The violation of the aforementioned provisions makes applicable, pursuant to Article 58, paragraph 2, letter i), the administrative sanction provided for by Article 83, paragraph 5 of the Regulation, as also referenced by Article 166, paragraph 2, of the Code.

In this context, considering, in any case, that the conduct has exhausted its effects - in relation to the timely removal and replacement of the sign bearing the notice indicating the information of the complainant - the prerequisites for the adoption of measures, of a prescriptive or prohibitory nature, referred to in Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i) and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The violation of Articles 5 and 9 of the Regulation as well as Article 2-septies, paragraph 8, of the Code, determined by the processing of personal data subject to this provision, carried out by the Authority, is subject to the application of the administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter a) of the Regulation.

It should be noted that the Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the

Regulation of the Guarantor no. 1/2019).

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into account the principles of effectiveness, proportionality, and deterrence, indicated in Article 83, paragraph 1, of the Regulation, in light of the elements provided for in Article 83, paragraph 2, of the Regulation in relation to which it is observed that:

- the processing of data carried out by the Authority concerns data suitable for revealing information about the health of a single data subject and the violation concerned a short time frame (Article 83, paragraph 2, letters a) and g) of the Regulation);
- the conduct is characterized by particular slightness from a psychological perspective as the incident, unintentional, was caused by a misunderstanding between those who ordered the notification to users of the impossibility of carrying out the service they were waiting to receive and those who actually executed said notification (Article 83, paragraph 2, letters b) and k) of the Regulation);
- the Authority became aware of the violation following the request by Dr. XX to the Guarantor regarding the incident (Article 83, paragraph 2, letter h) of the Regulation);
- the Authority collaborated with the Authority during the investigation and this procedure and promptly took action to remedy the incident (Article 83, paragraph 2, letters f) and c) of the Regulation).

By reason of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction provided for by Article 83, paragraph 5, letter a) of the Regulation, in the amount of €5,000.00 (five thousand) for the violation of Articles 5 and 9 of the Regulation and Article 2-septies of the Code as the administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

It is also considered that the accessory sanction of publication on the Guarantor's website of this provision, provided for by Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Guarantor no. 1/2019, should be applied due to the particular category of personal data processed.

Finally, it is noted that the prerequisites referred to in Article 17 of Regulation no. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR

having noted the violation of Articles 5 and 9 of the Regulation and Article 2-septies of the Code, declares the illegality of the processing of personal data carried out by the local health authority no. 3 of Nuoro, with legal headquarters in Nuoro, Via Demurtas no. 1 – 08100, C.F./VAT number 01620480911, in the terms stated in the motivation;

ORDERS

pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation, as well as Article 166 of the Code, the aforementioned local health authority no. 3 of Nuoro, represented by the legal representative pro tempore, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violation indicated in this document.

****Provision****, according to the methods indicated in the attachment, within 30 days from the notification in motivation; it is stated that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within the term of 30 days, of an amount equal to half of the imposed sanction;

****ORDERS****

the aforementioned Company, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law No. 689/1981.

****DISPOSES****

- the publication of this provision on the website of the Authority, pursuant to Article 166, paragraph 7,

of the Code;

- the annotation of this provision in the internal register of the Authority - as provided for by Article 57, paragraph 1, letter u), of the Regulation, as well as by Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority - related to violations and measures adopted in accordance with Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to file an appeal before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, June 8, 2023

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei